

		Attorney Cordero \$700 * 52.5 = \$36,750 Attorney Reese \$600 * 2.3 = \$1,380 Attorney Lin \$550 * 66.0 = \$36,300 Attorney Evans \$500 * 5.1 = \$2,550 Attorney Schubert \$500 * 447.2 = \$223,600 Senior Paralegals \$225 * 83.0 = \$18,675 Paralegals \$200 * 197.0 = \$39,400 Law Clerks \$125 * 107.5 = \$13,437.50 Case Managers \$100 * 5.1 = \$510 Total: \$372,602.50 Plaintiff is awarded \$372,602.50 in attorneys' fees. Plaintiff's request that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment is denied. A court order awarding monetary sanctions is immediately enforceable through the execution of judgment laws. See, e.g., Cal. Civ. Proc. Code §§ 680.230, 680.270 & 699.510; <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615. Plaintiff provides no persuasive explanation why unpaid monetary sanctions should be added to the judgment when orders issuing monetary sanctions are immediately enforceable through the execution of judgment laws. Plaintiff's notice of motion states that plaintiff also seeks "actual litigation costs as outlined in Plaintiff's memorandum of costs previously filed with this Court" (Notice of Motion (ROA 1036) at 2:6-7), but plaintiff does not address this request in his brief (ROA 1027), his counsel's declaration (ROA 1031) or his proposed order (ROA 1025). In his reply, plaintiff states that "[h]e only seeks attorneys' fees through this motion, while the litigation costs are sought through Plaintiff's Memorandum of Costs, filed February 5, 2026." Reply (ROA 1067) at 9:18-19. As the instant motion does not address costs, and as plaintiff states he does not seek costs with this motion, the court need not address them here. Defendants' Evidentiary Objections Nos. 1 through 21 (ROA 1063) to the Cordero Declaration are overruled or were not material to the disposition of the motion. Plaintiff to give notice.
7	Martinez v. Brewery X 2023-01370101	Off calendar.
8	Nguyen v. Baxter Healthcare Corporation	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for

	2023-01358073	an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government.” <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review “to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs’ motion for approval of a \$420,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should provide the estimated high and low individual PAGA payments. 2. The PAGA Period needs a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. Settlement Agreement ¶ I.11. 3. The word “Complaint” in paragraph I.12 should be replaced with “First Amended Complaint.” 4. The “Released Parties” provision in paragraph I.17 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties, such as “affiliates” and “any and all of their agents, employees, officers, directors, and attorneys.” Those terms should be removed. 5. Paragraph III.2 should state which defendant will fund the settlement or state the funding allocation between defendants. 6. The court will not approve a settlement that permits defendants to shorten the PAGA Period. Paragraph III.3 should be revised accordingly. 7. The phrase “relate to or” in paragraph III.6 should be removed in two places as it renders the PAGA release overbroad. 8. Paragraph V.18 should be revised to state that the prevailing party attorneys’ fees and costs provision in that paragraph will not be enforced against unnamed aggrieved employees. 9. Plaintiffs’ counsel seeks \$140,000 in attorneys’ fees (33 1/3% of the gross settlement amount). Absent unique circumstances, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount. Plaintiffs’ counsel should address in the supplemental filing whether any such unique circumstances exist here. 10. The “Summary Report” submitted by Attorney Otkupman (Otkupman Decl. (ROA 167) Ex. 2) is insufficient as the
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